

# STATE OF NEW YORK

8685 - B

## IN SENATE

January 7, 2026

Introduced by Sen. FAHY -- read twice and ordered printed, and when printed to be committed to the Committee on Higher Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to the qualification of an applicant for the New York opportunity promise scholarship

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraphs (c), (d) and (e) of subdivision 1 of section  
2 6311 of the education law, as added by section 1 of part F of chapter 56  
3 of the laws of 2025, are amended to read as follows:

4 (c) is matriculated at a community college of the state university of  
5 New York or the city university of New York, as defined in subdivision  
6 two of section sixty-three hundred one of this article or subdivision  
7 four of section sixty-two hundred two of this title, respectively, in an  
8 approved program directly leading to an associate's degree, certificate,  
9 or certification in a high-demand field; provided that for the [~~two~~  
10 ~~thousand twenty-five--two thousand twenty-six~~] two thousand twenty-  
11 five--two thousand twenty-six academic year, such fields shall include  
12 but not be limited to advanced manufacturing, technology, cybersecurity,  
13 engineering, artificial intelligence, nursing and allied health  
14 professions, green and renewable energy, and pathways to teaching in  
15 shortage areas, provided further that such fields may be updated annual-  
16 ly thereafter by the department of labor no later than one hundred  
17 eighty days prior to the first start date of the fall term of such  
18 community colleges, and provided further that the eligibility of such  
19 approved program established in the semester for which the applicant  
20 makes initial application shall continue; and

21 (d) is eligible for the payment of tuition and fees at a rate no  
22 greater than that imposed for resident students in community colleges[~~+~~

23 ~~and~~

24 ~~(e) has not already obtained any postsecondary degree, provided that~~  
25 ~~nothing in this paragraph shall be construed to prohibit the eligibility~~

EXPLANATION--Matter in italics (underscored) is new; matter in brackets  
[-] is old law to be omitted.

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- 1 ~~of a student who is already enrolled in an eligible associate degree~~
- 2 ~~program on the effective date of this section and who meets all the~~
- 3 ~~other eligibility requirements of this subdivision].~~
- 4     § 2. This act shall take effect immediately.